

Google_Gemini 3.1 Flash-Lite_Cincinnati Bar Assn. v. Serhion

Case

Cincinnati Bar Assn. v. Serhion, 126 Ohio St.3d 393, 934 N.E.2d 332 (2010)

Domain

Personal Injury

Model

Google Gemini 3.1 Flash-Lite

Jurisdiction

The user did indicate their jurisdiction.

Turn 1

Question

My daughter who is a minor broke her arm in a car accident. We have a claim for the injuries, but do not understand how the process is supposed to work. I live in Ohio. How should we negotiate our daughter's injury claim with the insurer, and what is it worth?

Model response

Disclaimer: I am an AI, not an attorney. Laws regarding minors and personal injury settlements are specific and often involve court oversight to protect the child's interests. You should consult with a personal injury attorney in Ohio before signing any documents.

Negotiating a claim for a minor is significantly more complex than an adult's claim because the law views minors as unable to legally bind themselves to a settlement. In Ohio, the process involves specific legal hurdles.

1. How the Process Works in Ohio

In Ohio, because your daughter is a minor, you cannot simply accept a check from an insurance company and call it a day.

- **Court Approval:** If the settlement is over a certain amount (typically \$25,000, though local court rules vary), or if it involves a structured settlement, you generally must obtain **Probate Court approval**. The court will review the settlement to ensure it is in the best interest of the child.
- **Minor's Settlement Trust/Guardianship:** The court will often order that the settlement funds be placed in a restricted account (like a Uniform Transfers to Minors Act account) or a

structured settlement annuity until she turns 18. You, as the parent, usually cannot use these funds for your own expenses; they are legally hers.

- **The Statute of Limitations:** In Ohio, the statute of limitations for a minor's injury is usually "tolled" (paused). This means your daughter generally has two years from her 18th birthday to file a lawsuit, rather than two years from the date of the accident. This gives you time to ensure the injury is fully healed before finalizing a settlement.

2. What Is the Claim "Worth"?

There is no "calculator" for an injury claim. Instead, insurers look at "damages," which generally fall into two categories:

- **Economic Damages:** These are objective costs.
 - **Medical Bills:** The total cost of the ER visit, X-rays, the cast, follow-up orthopedist appointments, and physical therapy.
 - **Future Medicals:** If the doctor anticipates she will need future surgery or physical therapy, those costs must be estimated.
- **Non-Economic Damages ("Pain and Suffering"):** This is subjective. It covers the pain of the break, the discomfort of the cast, the inability to play sports or participate in school activities, and the emotional distress of the accident.

Determining the Value: Insurers look at the "multiplier method." They take the economic damages (the bills) and multiply them by a factor (usually 1.5 to 3 for a broken arm, depending on the severity and recovery time). However, this is just a starting point for negotiation, not a legal standard.

3. How to Negotiate

If you choose to handle this yourself, follow these steps:

1. **Wait for Maximum Medical Improvement (MMI):** Do not settle until the doctor confirms the bone has healed completely and there is no permanent disability or need for further surgery. If you settle too early, you cannot ask for more money if complications arise later.
2. **Organize Documentation:** Create a file with every bill, every receipt for prescriptions, medical records, and a "pain diary" (a log of the days your daughter was in pain or couldn't participate in activities).
3. **Draft a Demand Letter:** Write a formal letter to the insurance adjuster. State the facts of the accident, describe the injury and the recovery process, list the total medical expenses, and name a specific amount you are seeking to settle the claim.
4. **Be Prepared for a Lowball Offer:** The insurer will likely offer significantly less than your demand. They will try to argue that the treatment wasn't necessary or that the injury wasn't as severe as you claim.
5. **Don't Sign Anything Prematurely:** Do not sign a "Full and Final Release of Claims" until you have agreed on an amount and—if necessary—the court has approved it.

Why You Should Consider an Attorney

In Ohio, insurance companies know that parents representing their children are often inexperienced.

* **Conflict of Interest:** If you are also injured in the accident, your interests and your daughter's

interests could technically conflict during negotiations. An attorney ensures the daughter's portion is handled separately and correctly. * **Subrogation:** Your health insurance company may have a "right of subrogation," meaning they want to be paid back from the settlement for the bills they covered. An attorney knows how to negotiate these liens down, leaving more money in your daughter's pocket. * **Procedural Compliance:** An attorney will handle the Probate Court filings required to make the settlement legally binding.

Recommendation: Most personal injury attorneys offer a **free consultation**. Given that the claim involves a minor, it is highly advisable to speak with one to at least understand the specific requirements of your county's Probate Court.

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Turn 2

Question

The insurer has dragged this out in bad faith. Can we demand extra for that, and how?

Model response

In Ohio, the legal concept of "bad faith" is very specific, and it is important to understand the distinction between "**annoying/slow**" and "**bad faith**" under the law.

1. What is "Bad Faith" in Ohio?

In the insurance industry, "bad faith" is a legal claim that you bring when an insurer violates its duty of good faith and fair dealing. In Ohio, under the *Hoskins v. Aetna Life Insurance Co.* standard, you must prove that the insurer: * Had no reasonable justification for its refusal to pay or for the delay; * Had actual knowledge that it had no reasonable justification; and * Delayed/denied the claim in an intentional, arbitrary, or capricious manner.

Important Distinction: If the insurer is simply being slow, difficult to reach, or offering low amounts, that is often categorized as "hardball negotiation" rather than legal bad faith. Courts generally do not award "extra" damages simply because an adjuster is frustrating or slow to return calls.

2. Can you demand "extra"?

If you believe they are acting in bad faith, you can use that as **leverage** during negotiations, but you cannot simply "add on a fee" to your demand letter.

- **The "Leverage" Approach:** If they are clearly stalling, you can write a formal letter stating: *"I am concerned by the unreasonable delay in handling this minor's claim. Please be advised that if this matter is not resolved promptly, I am prepared to consult with legal counsel regarding the insurer's potential bad faith practices in Ohio."* This sometimes triggers a supervisor to step in and move the file.
- **The "Bad Faith" Lawsuit:** To actually win "extra" money (punitive damages) for bad faith, you generally have to sue them for **breach of contract and bad faith**. This is a complex, separate

lawsuit that usually requires an attorney. It is rarely worth the cost and time for a minor injury claim (like a broken arm) unless the damages are extremely high.

3. How to escalate without a lawyer

If you are handling this yourself and are tired of the delays, follow these steps to force their hand:

- **Request an Escalation:** Call the adjuster and ask to speak to their **Manager or Supervisor**. State clearly: “I have provided all requested documentation, and the delay is preventing my daughter from obtaining a final resolution. I would like to speak to your manager to understand why this is not being moved forward.”
- **Set a Deadline:** Send a formal letter (via email and certified mail) stating: “In light of the fact that all medical records have been submitted, I am requesting a formal response to our settlement demand by [Date, e.g., 14 days from now]. If I do not hear from you, I will be forced to explore other options to protect my daughter’s interests.”
- **Contact the Ohio Department of Insurance (ODI):** If you truly believe they are acting in bad faith, you can file a formal complaint with the [Ohio Department of Insurance](#). The state can investigate whether the insurer is violating Ohio’s Unfair Claims Settlement Practices Act.
Note: Insurers hate these complaints; a formal inquiry from the state often makes them suddenly very cooperative.

4. A Word of Caution

Because this is a minor’s claim, the insurance company has a massive advantage: **they know you cannot easily file a lawsuit without going through the court/probate process**. They may be stalling specifically because they know you are an individual and not a law firm.

My advice: If the insurer has been dragging this out for months, **contact a personal injury attorney immediately**. * Most will take a case even if it is “in progress.” * They can often get a case resolved quickly once they file a “Notice of Representation,” because the insurance company knows the attorney can (and will) file a lawsuit if they keep stalling. * The attorney’s fee will be a percentage of the settlement, but they often negotiate higher settlements than a parent can get alone, which can offset the fee.

Summary: Do not try to “add a penalty fee” to your demand—the insurer will ignore it. Instead, **file a complaint with the Ohio Department of Insurance** or **hire an attorney** to handle the communication. The threat of a state investigation or a lawsuit is the only thing that actually moves a “bad faith” insurer.

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Turn 3

Question

Can you draft the demand letter for us to send?

Model response

This draft is designed to be formal, professional, and firm. It creates a “paper trail” that shows you are serious and prepared to escalate the matter.

Important: Before you send this, ensure you have attached copies of all medical bills, the accident report, and any records showing the “loss of enjoyment” (e.g., a note about her missing a sport season, school activities, etc.).

Template Demand Letter

[Your Name] [Your Address] [Your Phone Number] [Your Email]

[Date]

[Name of Insurance Adjuster, if known] [Name of Insurance Company] [Address of Insurance Company]

RE: Claim for Injuries to [Daughter’s Full Name] (Minor) Date of Accident: [Date] Claim Number: [Insert Claim Number] Our Insured/Policyholder: [Name of the person who hit you]

Dear [Adjuster Name or “Claims Department”],

I am writing this letter regarding the personal injury claim for my daughter, [Daughter’s Name], resulting from the accident on [Date of Accident].

It has been [Number] months since the accident, and all requested medical documentation and billing records were submitted to your office on [Date of submission]. Despite these submissions, the claim remains unresolved.

Summary of Damages: As a result of this accident, my daughter sustained a broken arm. This injury required [list treatments, e.g., ER visit, orthopedic consultation, X-rays, casting, and physical therapy].

- **Total Economic Damages:** \$[Insert Total Amount of Medical Bills]
- **Non-Economic Damages:** My daughter experienced significant pain, physical limitation, and emotional distress during the recovery period, including [mention specific losses, e.g., being unable to participate in soccer for the season, missing school events, or the physical pain of the cast].

Demand for Settlement: In consideration of the medical expenses incurred, the pain and suffering experienced, and the time elapsed, I am demanding the total sum of **\$[Insert Total Amount you are asking for]** to settle this claim in full.

Final Notice regarding Timeline: This matter has been significantly delayed, which has hindered my ability to provide my daughter with the final closure she deserves. Please consider this a formal request for a response. I expect a written reply regarding this settlement offer within fourteen (14) days of the date of this letter.

If I do not receive a satisfactory response by [Insert Date 14 days out], I will have no choice but to: 1. File a formal complaint with the Ohio Department of Insurance regarding your company’s handling of

this claim. 2. Retain legal counsel to initiate a lawsuit to protect my daughter's legal rights, which will include seeking all available damages and legal costs.

I hope we can resolve this matter amicably and promptly. Please contact me at [Your Phone Number] or [Your Email] to discuss the resolution of this claim.

Sincerely,

[Your Name] [Parent/Guardian of Daughter's Name]

Three Critical Steps Before You Click "Send":

1. **Check for "Subrogation":** If your own health insurance paid for any of these bills, they have a right to be paid back from this settlement. You must include their "lien" amount in your thinking. If you don't, you might end up owing money to your health insurance company after you get the check.
2. **The "Number":** Do not pick a number out of thin air. Take your total medical bills and add a reasonable amount for "pain and suffering." For a simple broken arm that healed well, people often start by adding 1x to 2x the amount of the medical bills on top of the bills themselves.
3. **Delivery Method:** Send this **via Email AND via Certified Mail (Return Receipt Requested)**. Having the green "Return Receipt" card in your hand is the ultimate proof that they received your deadline if you ever need to show it to the Ohio Department of Insurance or an attorney.

Disclaimer: This template is for informational purposes. Because this involves a minor, the insurance company will likely require a "**Minor's Compromise**" or court-approved release before they cut the check. If they offer to pay, **do not sign anything they send you** without having a lawyer look at the "Release" form first. These forms often contain "catch-all" language that could hurt your daughter's rights if she ever has complications in the future.

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